

26TRCV01206 26TRCV01206

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-14

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Case Number: 26TRCV01206 Hearing Date: September 14, 2026 Dept: B

Moving

Parties: Petitioner Claudia Diaz-Paniagua

Responding

Party: None

Petitions to Approve

Compromise of Pending Action of Minor

The Court considered the moving papers.

RULING

The

Court is inclined to grant petitioner's Petitions to Approve Compromise of Pending Action on behalf of minor claimants.

Pursuant

to California Rules of Court, Rule 7.952(a), petitioner and minor claimants are required to attend the hearing on the petitions but the Court dispenses with the appearance of the minors based on the circumstances of the case.

BACKGROUND

On April

3, 2026, Justin Sevastian Cortes, minors Jenicka Cortes, Daniel Cortes, Nathaniel Cortes, Juan Cortes Jr., by and through their guardian ad litem, Claudia Diaz-Paniagua, and Juan Manuel Cortes Cordero, through his successor in

interest Justin Sevastian Cortes filed a complaint against Tiffany Nicole Daniel for negligence/negligence per se and wrongful death based on a motor vehicle accident on February 3, 2025, in Gardena.

DISCUSSION

The

Court has reviewed the petitions and finds the settlement terms to be fair and reasonable. According to the petitions, claimants Daniel Cortes (age 17), Nathaniel Cortes (age 14), Jenicka Cortes (age 12), and Juan Cortes Jr. (age 9), are the children of decedent Juan Manual Cortes Cordero who died from injuries sustained in a motor vehicle collision. Claimants have suffered the loss of comfort, care, affection, society, and solace of their father and the loss of his financial support. There is a fifth plaintiff who is the child of decedent, but not a minor.

The

parties settled for \$10,000 as to each minor claimant to be allocated as follows: \$2500 (25%) in attorney's fees, \$178.46 (1/5 of costs), and \$7321.54, to be deposited in an insured account in a financial institution, subject to withdrawal only on authorization of the court.

The Court

is inclined to grant the petitions.